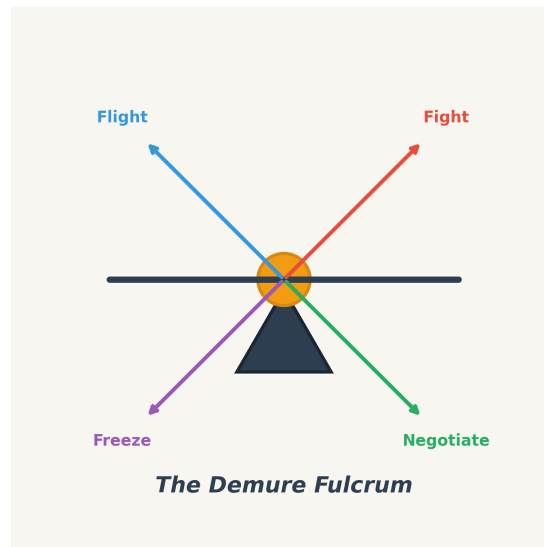




The Demure Fulcrum: Negotiation as an Agency-Preserving Meta-Response Under Threat

A Conceptual Framework and Research Agenda — Working Paper, Not Peer Reviewed

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WORKING PAPER — NOT PEER REVIEWED

This repository presents a conceptual framework and research agenda, not an empirically validated clinical or neurobiological model.

Abstract

The Demure Fulcrum proposes **negotiation as an agency-preserving higher-order meta-response under threat**. The framework does not claim that negotiation has already been demonstrated to be a fourth autonomic reflex equivalent to fight, flight, or freeze. It instead identifies a different level of analysis. Defensive reactions select an action within a threatening situation; negotiation attempts to change the situation's constraints, options, information, commitments, or payoffs. In its strict form, the construct applies to interpersonal or institutional settings in which an actor can communicate with an influenceable counterpart, make conditional proposals, and retain at least some capacity to refuse, counterpropose, delay, exit, or pursue an alternative. Intrapersonal and existential uses are treated as conceptual extensions rather than assumed to be the same process.

This paper defines the construct, specifies its boundary conditions, differentiates it from active coping, cognitive reappraisal, assertiveness, affiliation, appeasement, and established negotiation skill, and situates it within research on threat, appraisal, control, agency, social cognition, bargaining, cooperation, and culture. A formal account distinguishes choosing an action in game *G* from attempting to transform *G* into *G'*. Six testable predictions, rival hypotheses, disconfirmation criteria, and a staged empirical programme are proposed. Cultural examples are retained only as interpretive illustrations of how humans narrate agency under constraint. The resulting framework is deliberately provisional: its value depends on whether it can be operationalised reliably and whether it explains behaviour beyond existing constructs.

1. Introduction

Models of threat response are often compressed into memorable lists: fight, flight, and freeze, sometimes extended with fawn, faint, tend-and-befriend, or other labels. Such lists are useful for public communication, but they can obscure the fact that threat responding is dynamic, context-sensitive, and distributed across physiological regulation, perception, appraisal, action preparation, learned behaviour, and social decision making. Cannon's early account of sympathoadrenal mobilisation was foundational, yet subsequent work describes defensive behaviour as a cascade shaped by threat imminence, controllability, escape routes, prior learning, and the organism's available repertoire (cannon1915; Fanselow, 1994; Mobbs et al., 2007; Kozłowska et al., 2015; Roelofs, 2017).

The original Demure Fulcrum manuscript responded to a genuine conceptual gap but stated its conclusion too strongly. It observed that people sometimes do more than attack, withdraw, or become immobile. They speak, bargain, reframe, recruit, promise, trade, delay, mediate, and construct new options. The manuscript interpreted this family of responses as a distinct instinct. That interpretation exceeded the available evidence. Complex negotiation depends on many existing capacities—language, executive control, social cognition, memory, appraisal, and learned bargaining conventions—and no unique biological circuit has been established for it.

The central insight can be retained without that overreach. A threat model can distinguish **action selection within a situation** from **attempts to transform the situation itself**. A person who fights, flees, or freezes responds to the options as currently perceived. A person who negotiates asks whether the relevant actor, rule, deadline, commitment, exchange rate, or interpretation can be changed. This does not make negotiation biologically independent, morally superior, or universally available. It makes it a candidate higher-order response policy with a distinct functional target.

The word *fulcrum* names the proposed pivot. The actor interrupts immediate action selection long enough to test whether leverage exists. The leverage may be material, informational, relational, procedural, reputational, symbolic, or temporal. The name *Demure* is eponymous, referring to the author's surname; it is not a claim that quietness or modesty is required. Negotiation can be calm or heated, cooperative or distributive, ethical or coercive. What matters is the attempted transformation of the choice structure while some degree of agency is retained.

The framework therefore makes a narrower and more testable contribution:

Under conditions of negotiability, an actor may preserve or recover agency by using communication and contingent exchange to alter the constraints, options, information, commitments, or payoffs of a threatening situation.

This is a conceptual proposal and research agenda. The paper first separates levels of analysis, then defines the construct, its typology, and its boundaries. It differentiates the framework from adjacent concepts, identifies relevant psychological and behavioural foundations, outlines neurobiological constraints without reducing the construct to a brain region, and develops evolutionary, anthropological, and game-theoretic rationales. It then presents a formal model, predictions, rival hypotheses, an empirical programme, cultural illustrations, ethical implications, and limitations.

2. Levels of Analysis in Threat Response

A central source of confusion is the use of one vocabulary for phenomena occurring at different explanatory levels. The Demure Fulcrum becomes clearer when four levels are separated.

2.1 Physiological state

Threat can change autonomic, endocrine, attentional, and neural states. Sympathetic activation, parasympathetic regulation, cortisol dynamics, changes in vigilance, and stress-related shifts in large-scale brain networks influence what an actor can perceive and do (mcewen1998; Arnsten, 2009; Hermans et al., 2014). These states are not themselves strategies. Similar arousal can accompany escape, confrontation, public speaking, caregiving, or bargaining.

2.2 Action tendency and defensive behaviour

At a behavioural level, organisms may orient, freeze, hide, flee, confront, submit, seek proximity, or recruit allies. These responses vary with defensive distance and available affordances (blanchard2001; Mobbs et al., 2007; Kozłowska et al., 2015). A freeze response can support information gathering and preparation rather than simple passivity (roelofs2017). Likewise, approach is not always aggression, and withdrawal is not always fear.

2.3 Higher-order response policy

A response policy coordinates appraisal, inhibition, planning, communication, and action over time. Problem-focused coping, cognitive reappraisal, strategic delay, information seeking, and negotiation belong at this level. They use and regulate lower-level processes rather than replacing them (lazarusfolkman1984; Gross, 1998; Ochsner & Gross, 2005). The Demure Fulcrum is proposed primarily at this level.

2.4 Institutional and strategic application

Mediation systems, labour bargaining, diplomacy, restorative processes, market design, organisational governance, and network interventions operate at an institutional level. They can be informed by a meta-response framework, but their success cannot validate the underlying psychological construct by itself. An effective mediation protocol may work for reasons unrelated to the Demure Fulcrum; an ineffective application does not automatically refute the existence of negotiation behaviour.

The Demure Fulcrum as a level-of-analysis model

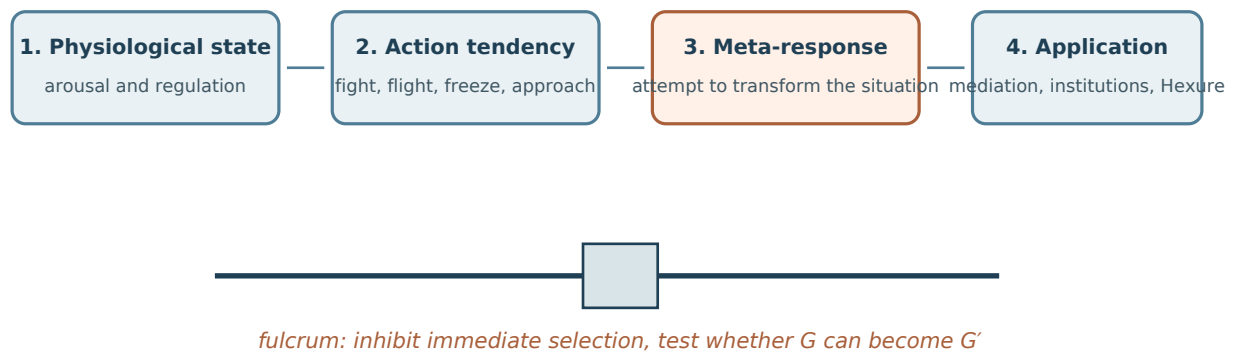


Figure 1. The framework is located at the level of higher-order response policy; physiological and behavioural systems constrain it, while applications remain downstream hypotheses.

These levels interact. Acute stress can narrow attention and impair some executive functions, but its effects are not uniformly disabling and depend on intensity, timing, task, appraisal, and individual differences (shields2016; Starcke & Brand, 2012). A theory that treats a reflective response as detached from physiology would be implausible. A theory that reduces every social response to a single autonomic state would be equally incomplete.

3. Operational Definition

3.1 Strict construct

For research purposes, **strict negotiation under threat** is defined as a response in which an actor attempts, through signalling and contingent exchange, to alter the structure of an adverse or threatening situation while retaining some meaningful capacity to represent interests and choose among responses.

A case qualifies when all seven conditions are present:

1. **Adverse prospect:** the actor perceives a threat, conflict, loss, constraint, or materially important adverse possibility.
2. **Influenceable counterpart:** another actor, group, organisation, or institutional process can alter at least part of the outcome.
3. **Partial interdependence:** outcomes depend on choices made by more than one side; interests may conflict but are not completely independent.
4. **Communication or signalling:** information, intention, credibility, needs, limits, or offers can be transmitted.
5. **Contingency:** the response includes a proposal, counterproposal, conditional concession, request, commitment, trade, procedural move, or exchange of information linked to another party's response.
6. **Structural target:** the actor attempts to change options, constraints, obligations, timing, information, enforcement, interpretation, or payoffs—not merely to choose from an unchanged menu.
7. **Residual agency:** the actor retains at least some capacity for refusal, counterproposal, delay, exit, appeal, alliance formation, or an alternative course, even when that capacity is severely constrained.

This definition is intentionally stricter than everyday uses of *negotiation*. Conversation alone is insufficient. Persuasion without contingency may be advocacy. Pleading without any possible

exchange may be supplication. Private reinterpretation can be adaptive but is not strict negotiation because there is no external counterpart capable of accepting or rejecting terms.

3.2 Agency as a graded behavioural property

Agency is not treated here as an all-or-nothing metaphysical possession. It is operationalised through observable capacities: expressing interests, generating alternatives, making conditional proposals, obtaining information, preserving a fallback, using an appeal channel, coordinating with others, or maintaining a meaningful veto. This behavioural interpretation is consistent with agentic accounts that emphasise intentional action and influence, while recognising that social position and resources shape what choices are actually available (Bandura 2001; Bandura, 2006; Emirbayer & Mische, 1998; Sen, 1999; Kabeer, 1999).

Residual agency can be small. A worker facing dismissal, a patient negotiating treatment, or a citizen contesting an administrative decision may have far less power than the institution. The framework does not require equal power. It does require that some aspect of the outcome remains influenceable and that the actor's behaviour does more than display unconditional compliance.

3.3 The fulcrum moment

The fulcrum is the functional transition between an immediate action tendency and a test of transformability. It can be represented as a short sequence:

1. detect or appraise an adverse situation;
2. inhibit or delay the first available response where time permits;
3. identify the influenceable actor, rule, resource, deadline, or interpretation;
4. identify interests, dependencies, and possible leverage;
5. formulate a contingent signal or proposal;
6. update behaviour from the counterpart's response.

This sequence need not be slow, verbally elaborate, or fully conscious. Skilled negotiators may execute parts rapidly through learned patterns. The claim is functional, not introspectively absolute: the response seeks to alter the structure through contingent interaction.

4. Boundary Conditions and Construct Typology

4.1 Conditions that increase negotiability

Negotiation becomes more plausible when there is an identifiable and influenceable counterpart, a communication channel, partial interdependence, time for at least one exchange, credible commitments, information that can be revealed or withheld, and some alternative to immediate capitulation. Repeated interaction, reputation, and enforceable agreements can expand the cooperative space (Nash 1950; Rubinstein, 1982; Schelling, 1960; Sebenius, 1992).

4.2 Conditions that reduce negotiability

The strict construct becomes less applicable when the threat is immediate and non-agentic, when no counterpart can affect the outcome, when communication is impossible, when the other side cannot perceive or respond, or when a coercive actor has eliminated every meaningful alternative. A falling object cannot bargain. A rapidly approaching predator may leave no time. An absolute command backed by unavoidable violence may permit strategic appeasement but little genuine negotiation.

Negotiability is therefore not a personality trait alone. It is a property of the actor-situation relation. The same person may negotiate in one crisis and flee in another because the available structure differs.

4.3 Strict, intrapersonal, and existential forms

Form	Counterpart	Structural target	Evidentiary status
Interpersonal or institutional negotiation	another person, group, organisation, or process	terms, timing, commitments, information, options, or payoffs	core construct and primary empirical target
Intrapersonal negotiation	competing goals, identities, values, or temporal selves	self-imposed rules, priorities, interpretations, or commitments	conceptual extension overlapping self-regulation and reappraisal
Existential negotiation	fate, God, death, identity, meaning, or an imagined absolute	narrative relationship to uncontrollable conditions	phenomenological and cultural extension, not direct behavioural evidence

Intrapersonal negotiation may describe useful self-dialogue: “If I complete this task, I will permit myself rest,” or “I can retain this value while revising that belief.” Yet such cases lack a separate external decision maker. They should not be assumed to share all mechanisms with bargaining.

Existential negotiation names a lived experience in which a person bargains with what cannot literally respond. Prayer, vows, defiance of fate, and bargaining in grief may preserve a sense of subjecthood, but they are better studied through phenomenology, narrative psychology, religion, or meaning-making than through a standard negotiation experiment.

5. Differentiation from Adjacent Constructs

The strongest test of the Demure Fulcrum is not whether negotiation exists; that is undisputed. The issue is whether the proposed framing adds explanatory value beyond established constructs.

Adjacent construct	Primary function	Typical observable pattern	Difference from strict negotiation
Fight	overcome or deter the threat	attack, confront, dominate, punish	may change power through force but need not seek contingent agreement
Flight	increase distance or terminate exposure	escape, withdraw, avoid, resign	changes contact rather than jointly altering terms
Freeze or immobility	orient, assess, inhibit movement, or survive inescapability	stillness, reduced movement, delayed action	can precede negotiation but contains no proposal by itself
Appeasement or submission	reduce immediate danger by lowering threat to the dominant party	unilateral concession, compliance, self-silencing	prioritises safety; reciprocity and retained alternatives may be minimal

Adjacent construct	Primary function	Typical observable pattern	Difference from strict negotiation
Tend-and-befriend	create safety through care and affiliation	seek allies, nurture, affiliate	social connection may support negotiation but does not require bargaining
Cognitive reappraisal	alter emotional impact by changing interpretation	reinterpret meaning, distance, reframe	changes appraisal without necessarily changing external terms
Problem-focused coping	act on a stressor or its consequences	planning, information seeking, practical action	broad category in which negotiation may be one method
Assertiveness	communicate needs or boundaries directly	clear request, refusal, boundary statement	communication style; no exchange or structural transformation is required
Persuasion	change another's belief or action	argument, framing, evidence, rhetoric	may be unilateral and need not involve reciprocal concession
Negotiation skill	perform effectively in bargaining tasks	anchoring, information exchange, package offers	competence variable; the meta-response concerns selection of negotiation under threat

5.1 Negotiation and appeasement

The contrast with appeasement requires special care. The popular term *fawn* is associated with trauma-oriented clinical writing rather than a single validated biological category (walker2013). Scholarly work on submission and appeasement describes responses that can reduce danger when direct resistance is costly (cantorprice2007). Such behaviour can be intelligent and life-preserving. Calling it an abandonment of self would moralise a response that may be the safest available option.

The proposed empirical difference is conditionality. Negotiation should more often contain counterproposals, information seeking, reciprocal concessions, explicit interests, preserved alternatives, or attempts to improve the choice set. Appeasement should more often contain unilateral concessions directed at immediate threat reduction. The distinction is graded: a person may begin with appeasement, discover leverage, and shift into negotiation; a negotiation may collapse into coercive compliance.

5.2 Negotiation and tend-and-befriend

Tend-and-befriend expanded stress theory by highlighting affiliation and caregiving, especially under conditions in which solitary fight or flight would be costly (taylor2000; Taylor, 2006). Acute stress can also increase some prosocial behaviours under particular conditions (vondawans2012). Affiliation can create allies, trust, and information, thereby increasing negotiability. Nevertheless, seeking support is not identical to making a contingent exchange with the source or controller of the threat.

5.3 Negotiation and cognitive reappraisal

Reappraisal changes the meaning assigned to an event and can alter emotional response through distributed regulatory systems (gross1998; Ochsner & Gross, 2005; Buhle et al., 2014). It may enable negotiation by reducing arousal or revealing alternatives. But a person can reappraise an unchangeable event without interacting with anyone. Conversely, a negotiator may remain distressed while making a strategically effective proposal. Reappraisal is therefore an enabling or companion process, not the strict construct itself.

6. Psychological and Behavioural Foundations

6.1 Appraisal, control, and coping

Stress depends not only on objective conditions but on appraisal of demand, resources, control, and meaning (lazarusfolkman1984). Perceived control has complex effects: it can reduce distress and support active responding, but illusory control can be maladaptive (thompson1981; Skinner, 1996). Learned-helplessness research similarly shows that controllability changes subsequent behaviour and neural regulation (maier2016).

The Demure Fulcrum predicts that perceived *transformability* should be particularly important. Control asks, “Can I cause the outcome?” Negotiability asks, “Can I alter the terms through an influenceable relationship or process?” The latter may exist even when direct control is low. A tenant cannot unilaterally set rent but may negotiate timing, repairs, duration, or services. A patient cannot dictate biology but may negotiate treatment choices and decision procedures.

Problem-focused coping includes efforts to manage the stressor and is therefore the closest broad parent construct (carver1989; Folkman & Moskowitz, 2004). The Demure Fulcrum will have scientific value only if its structural criteria—counterpart, interdependence, contingency, transformation, and residual agency—predict a coherent subset of coping behaviour.

6.2 Stress, executive function, and decision making

Acute stress can impair working memory, cognitive flexibility, and inhibitory control, particularly when stress is intense or poorly timed (arnsten2009; Shields et al., 2016). It can also change risk preferences and shift reliance between deliberative and habitual processes (porcelli2009; Starcke & Brand, 2012). These findings constrain any romantic account of negotiation. People cannot simply “choose the neocortex” as though emotion and cognition were separate brains.

At the same time, impairment is not uniform. Expertise, preparation, learned scripts, social support, time, and appraisal can preserve performance. Negotiation training may externalise cognitive work through checklists, preplanned limits, package offers, and trusted advisers. The framework therefore predicts an interaction: stress should reduce negotiation most when it removes time, working memory, communication, or perceived alternatives, rather than producing one universal effect.

6.3 Social cognition and metacognition

Negotiation requires representation of one's own uncertainty and the likely beliefs, motives, and constraints of others. Research on mentalising, medial frontal systems, and metacognition provides plausible enabling capacities (premack1978; Amodio & Frith, 2006; Frith & Frith, 2006; Fleming & Dolan, 2012; Frith & Frith, 2012). None of these capacities is unique to negotiation. They support teaching, deception, cooperation, care, competition, and cultural learning as well.

The theoretical claim is compositional: negotiation recruits a constellation of capacities toward a particular functional target. Evidence that a brain region participates in bargaining would not establish a separate response category. Evidence that strict negotiation behaviour forms a reliable construct and responds selectively to negotiability conditions would be more informative.

6.4 Subjective value and threat framing

Negotiators care about more than material outcomes. They evaluate fairness, process, self-respect, relationship, and how they are treated (curhan2006). Conflict frames alter what parties perceive as at stake (pinkley1994). Anxiety can produce low first offers, premature exit, and reduced outcomes (brooks2011), while motivated information processing affects whether groups examine alternatives (dedreu2008). These findings fit an agency-preserving account: the response is partly about retaining authorship over the process, not merely maximising money.

7. Neurobiological Constraints without Neuro-Essentialism

The revised framework rejects the obsolete image of a rational new brain sitting on top of a primitive emotional brain. Threat detection, feeling, regulation, memory, action, and social cognition arise from interacting systems. Rapid defensive processing and deliberative appraisal influence one another (ledoux2012; LeDoux & Pine, 2016).

A negotiation response may require several conditions: sufficient arousal to recognise significance, sufficient regulation to sustain communication, working memory for alternatives, inhibitory control over immediate action, social inference, and the ability to update from feedback. These processes constrain negotiation but do not define a unique neural signature.

Polyvagal Theory has influenced clinical language about safety and social engagement (porges2007; Porges, 2022). It is also the subject of substantial criticism concerning evolutionary, anatomical, and measurement claims (grossmantaylor2007; Grossman, 2023). The Demure Fulcrum is therefore not built on Polyvagal Theory. At most, the broad idea that autonomic state affects social engagement is compatible with the framework and with wider psychophysiological research. If specific polyvagal premises were rejected, the conceptual distinction between action selection and situation transformation would remain intact.

Neural or hormonal studies should come late in the research programme. Before asking where the construct is “in the brain,” researchers must show that it can be defined, observed, distinguished, and manipulated behaviourally. Otherwise, neuroimaging risks decorating an unstable concept with biological language.

8. Evolutionary, Anthropological, and Game-Theoretic Rationale

8.1 Cooperation and repeated interaction

Reciprocal altruism, repeated games, reputation, and partner choice show how cooperation can emerge among actors with partly conflicting interests (trivers1971; Axelrod & Hamilton, 1981; Axelrod, 1984; Nowak, 2006; Nowak & Sigmund, 2005). These theories do not prove a dedicated negotiation response. They explain why capacities for contingent exchange, cheater detection, commitment, and relationship management could be adaptive in a social species.

Dynamic networks add another dimension. People can sometimes respond to exploitation not by defeating the exploiter but by changing partners or ties (rand2011). Small-world structures permit rapid coordination but can also transmit defection and misinformation (wattsstrogatz1998). Such findings support the general importance of selecting relationships and restructuring interaction, while leaving the psychological classification open.

8.2 Human cooperative cognition

Human cooperation depends on shared intentions, communication, norm enforcement, and the ability to coordinate around joint goals (tomasello2005; Tomasello, 2014). Negotiation is one expression of that broader cooperative and competitive cognition. It is not necessarily prosocial: the same capacities enable manipulation, coalition building, and hard bargaining.

8.3 Anthropological caution

Accounts of egalitarian hunter-gatherer societies describe levelling practices, flexible residence patterns, exchange networks, and extensive non-kin cooperation (woodburn1982; Boehm, 1993; Hill et al., 2011; Apicella et al., 2012; Dyble et al., 2015; Wiessner, 2002). These observations make it implausible that ancestral social life consisted only of command or violence. They suggest long-standing demands for persuasion, reputation management, sharing, dispute resolution, and exit.

However, anthropology should not be used as a collection of agreeable anecdotes. Societies vary in hierarchy, gender, violence, norms, and decision procedures. Cross-cultural recurrence may support the importance of bargaining, but it does not demonstrate universality of the Demure Fulcrum as currently defined. Cultural research must test whether the structural core travels across local vocabularies rather than importing a Western commercial ideal of negotiation (brett2000).

8.4 Bargaining theory

Game theory offers precise tools for modelling disagreement points, feasible sets, commitments, information, and time (nash1950; Nash, 1951; Rubinstein, 1982; Raiffa, 1982). Negotiation analysis also distinguishes creating value from claiming value and shows how changing information, sequencing, or coalitions can change the game (schelling1960; Sebenius, 1992; Thompson et al., 2010).

The Demure Fulcrum borrows this structural insight rather than claiming that people consciously solve equations under threat. The distinctive move is not “cooperate” but “seek a transformation of what can be chosen or exchanged.” A hard distributive bargain can qualify. A friendly conversation without contingency may not.

9. Formal Model: Transforming G into G'

Let a threatening interaction be represented as:

$$G = \langle A, S, O, U, I, C, \tau \rangle$$

where:

- A is the set of actors;
- S is the set of relevant states;
- O is the set of currently available actions or options;
- U represents actor-specific utilities or valued outcomes;
- I represents information and beliefs;
- C represents commitments, rules, contracts, or enforcement conditions;
- τ represents time, sequencing, and deadlines.

A first-order response policy chooses an action o from the current option set $O(G)$. Fighting, fleeing, complying, waiting, or freezing can be represented at this level when they do not seek an agreement that changes the structure.

A negotiation meta-response emits a message or contingent proposal m intended to induce a transformation:

$$T_m(G) = G'$$

The transformation may change one or more components:

- $O \rightarrow O'$: a new option, package, appeal, alliance, or exit is created;
- $U \rightarrow U'$: incentives or perceived value change;
- $I \rightarrow I'$: private information, priorities, or constraints are revealed;
- $C \rightarrow C'$: promises, guarantees, procedures, sanctions, or enforcement change;
- $\tau \rightarrow \tau'$: a deadline, sequence, pause, or trial period changes;
- $A \rightarrow A'$: a mediator, ally, regulator, or new partner enters.

The actor then chooses within G' , not merely within G .

9.1 Negotiability

A provisional negotiability function can be expressed conceptually as:

$$N(G) = f(\text{counterpart influenceability,} \\ \text{communication,} \\ \text{interdependence,} \\ \text{time,} \\ \text{commitment capacity,} \\ \text{information asymmetry,} \\ \text{alternatives})$$

This is not yet a validated scale. It specifies variables that experiments can manipulate. Negotiability should rise when an influenceable counterpart and communication channel exist, when each side controls something the other values, and when proposals can be made credible.

9.2 Agency preservation

A provisional coding model for agency preservation may include:

- explicit representation of interests;
- generation of alternatives;
- counterproposal behaviour;
- conditional rather than unilateral concession;
- information seeking;
- preservation of a fallback, appeal, delay, or exit;
- updating in response to counterpart behaviour.

These indicators must be tested rather than assumed to form one dimension. Agency preservation could prove multidimensional or context-dependent.

9.3 Coercion and pseudo-negotiation

A formal offer does not guarantee meaningful negotiation. A coercive actor may present a choice whose alternatives are intentionally catastrophic. The framework should therefore distinguish the *presence of bargaining form* from the *degree of residual agency*. Coercive bargaining can still involve contingent exchange, but it belongs near the boundary of the construct and raises separate ethical questions.

10. Testable Predictions and Rival Hypotheses

10.1 Prediction 1: Negotiability effect

When an adverse scenario includes an influenceable counterpart, a communication channel, partial interdependence, and time for exchange, participants should select and enact strict negotiation behaviours more often than in matched scenarios lacking those features. The effect should appear in proposals, counterproposals, conditional concessions, and information seeking—not merely in self-reported preference for dialogue.

Rival explanation: participants may simply choose any active coping response when more options are available. To distinguish the framework, experiments must compare negotiation-specific structural behaviours with planning, help seeking, direct action, and reappraisal.

10.2 Prediction 2: Threat-imminence constraint

As threat becomes more immediate and communication time disappears, strict negotiation should decline relative to rapid defensive action. When the same objective stakes are presented with additional time or a credible pause, negotiation should recover.

Rival explanation: time pressure may impair all complex behaviour. The stronger Demure Fulcrum prediction is that the decline will be especially linked to loss of counterpart access, contingency, and transformability.

10.3 Prediction 3: Negotiation-appeasement dissociation

Under power asymmetry, negotiation should show more counterproposals, information gathering, reciprocal concessions, explicit interests, and preserved alternatives. Appeasement should show more unilateral concession and self-silencing directed at immediate threat reduction.

Rival explanation: both patterns may be points on one submission-assertiveness continuum. Factor analysis, behavioural coding, and outcome contingencies must determine whether the proposed distinction is genuinely multidimensional.

10.4 Prediction 4: Incremental validity

A measure of the Demure Fulcrum should predict negotiation selection and structural transformation after controlling for problem-focused coping, perceived control, assertiveness, cognitive reappraisal, social approach, general intelligence, prior negotiation training, and trait anxiety.

Rival explanation: the construct may be fully reducible to active coping plus negotiation skill. If so, a new label would add little scientific value.

10.5 Prediction 5: Stress-regulation interaction

Stress should not show one deterministic relationship with negotiation. Its effect should be moderated by appraisal, controllability, preparation, working-memory demand, social support, and time. Prepared scripts and external decision aids should preserve negotiation behaviour under stress better than unaided deliberation.

Rival explanation: any benefit may reflect generic task support rather than an agency-preserving response. Experiments should compare aids designed for bargaining with equally structured aids for non-negotiation coping.

10.6 Prediction 6: Structural core with cultural variation

Across cultures, the surface language, preferred relationship norms, directness, and acceptable concessions should vary. The strict structural core—counterpart, interdependence, contingency, attempted transformation, and residual agency—should nevertheless permit reliable coding if the framework is broadly useful.

Rival explanation: the construct may encode a Western, individualist ideal of explicit bargaining. Failure of measurement invariance would require revision or localisation rather than universal claims.

11. Disconfirmation Criteria

A framework becomes scientific only when evidence can count against it. The distinctiveness claim would be weakened substantially if one or more of the following results were replicated:

1. trained coders cannot reliably distinguish strict negotiation from persuasion, active coping, assertiveness, or appeasement;
2. negotiation behaviour does not increase when negotiability features are experimentally introduced;
3. the proposed indicators do not form a coherent or interpretable measurement structure;
4. the construct adds no predictive value beyond established coping and negotiation variables;
5. the $G \rightarrow G'$ distinction does not improve explanation or prediction of behaviour;
6. cross-cultural studies show that the structural definition cannot be applied without imposing incompatible assumptions;
7. observed outcomes are better explained by power, resources, communication skill, or institutional rules alone.

A null result would not show that people never negotiate under threat. It would show that the Demure Fulcrum does not earn status as a distinct explanatory framework.

12. Empirical Research Programme

12.1 Stage 1: Construct clarification

Begin with structured interviews and critical-incident reports from crisis negotiators, mediators, labour representatives, clinicians, emergency managers, survivors, and people who chose not to negotiate. The goal is not confirmation but boundary discovery. Cases should include successful negotiation, failed negotiation, coercive pseudo-negotiation, appeasement, flight, and situations where no counterpart existed.

An interdisciplinary Delphi process could test whether experts agree on inclusion criteria and identify overlooked adjacent constructs. All codebooks and exclusion decisions should be preregistered before confirmatory work.

12.2 Stage 2: Behavioural codebook

Develop a coding system for observable units:

- interest statement;
- question or information request;
- unconditional concession;
- conditional concession;
- offer and counteroffer;
- creation of a new option;

- recruitment of a third party;
- appeal to procedure or rule;
- preservation or abandonment of alternatives;
- explicit exit;
- threat, force, or silence.

Multiple blinded coders should classify video, transcript, and interactive-task data. Inter-rater reliability is a prerequisite for scale development.

12.3 Stage 3: Scenario experiments

Use factorial vignettes and incentivised interactive tasks. Manipulate counterpart influenceability, communication availability, threat imminence, power asymmetry, time, enforceability, and alternatives. Outcomes should include actual messages and choices, not only questionnaires.

A basic design could cross communication availability with counterpart influenceability. The framework predicts the highest strict-negotiation rate when both are present. A second design could hold material stakes constant while changing whether a third-party appeal or conditional commitment is possible.

12.4 Stage 4: Measurement and construct validity

Candidate questionnaire items should be generated from behaviour, not from inspirational statements. Exploratory and confirmatory factor analysis should be separated across samples. Convergent and discriminant validity should be tested against coping, control, assertiveness, reappraisal, social problem solving, bargaining confidence, and attachment-related measures.

Incremental validity must be assessed out of sample. A measure that merely redescribes confidence or active coping should be rejected or narrowed.

12.5 Stage 5: Field and longitudinal work

Study naturally occurring disputes in organisations, healthcare, housing, education, and public administration. Pre-register coding and outcomes where possible. Examine whether negotiation selection predicts agency, safety, relationship quality, material outcome, or later regret, while accounting for power and resources.

The framework should not assume negotiation is always best. Field research must include cases where exit, compliance, or immediate protective action produces better outcomes.

12.6 Stage 6: Psychophysiology and neuroscience

Only after behavioural validity is established should researchers examine physiological and neural correlates. Suitable questions include whether negotiation onset follows changes in arousal regulation, whether time pressure alters executive-network engagement, and whether trained scripts reduce cognitive load. EEG, autonomic measures, endocrine sampling, or neuroimaging may constrain mechanisms, but none should be used to manufacture a unique biomarker in advance.

13. Cultural and Phenomenological Illustrations

Cultural works cannot establish a biological response category. They can show how people imagine agency when ordinary control is lost.

In *Forrest Gump*, Lieutenant Dan's confrontation with the storm can be read as existential bargaining: he addresses fate as though it were a counterpart and reclaims authorship through defiance (zemeckis1994). The scene is not evidence of a neural negotiation system. It illustrates the phenomenology of refusing pure objecthood.

The myth of Orpheus makes the structural metaphor clearer. Orpheus cannot defeat death, but he attempts to change the rule through art and conditional agreement (ovid2004). The myth represents a human hope that even apparently absolute constraints may contain a fulcrum.

Dostoevsky's *Crime and Punishment* depicts prolonged renegotiation of identity, guilt, confession, and moral obligation (dostoevsky2002). Kafka's *The Trial* depicts the opposite boundary: an opaque system with no stable terms, no clear accusation, and no reliable counterpart, where attempted negotiation repeatedly fails (kafka1998). Together they illuminate intrapersonal, existential, and institutional dimensions without collapsing them into one mechanism.

Such material belongs in an interpretive companion to empirical work. Its value lies in conceptual discovery, public intelligibility, and examination of meaning—not validation.

14. Ethical and Practical Implications

The descriptive construct is morally neutral. Negotiation can preserve agency, but it can also manipulate, exploit, delay justice, legitimise coercion, or transfer risk to weaker parties. An arms dealer, extortionist, or abusive institution may bargain effectively. Strategic competence is not ethical legitimacy.

A normative application of the Demure Fulcrum therefore requires additional principles:

- **safety before ideology:** no person should be pressured to negotiate when immediate protective action is safer;
- **non-blame:** inability or unwillingness to negotiate under threat is not a character failure;
- **agency symmetry:** examine whether the process expands one party's agency by destroying another's;
- **consent and exit:** distinguish meaningful agreement from offers imposed without viable alternatives;
- **proportionality:** do not turn every relationship into instrumental exchange;
- **transparency about power:** name resource, legal, informational, and institutional asymmetries;
- **accountability:** evaluate outcomes, side effects, and who bears the cost.

In practice, the framework may support decision aids that ask: Is there an influenceable counterpart? What do they control? What do I control? What information is missing? Which terms can change? What is my fallback? Is negotiation safe? These questions are useful even if the broader theory later proves redundant, because they make structure and boundaries explicit.

15. Limitations

First, the framework is theoretical. The cited literatures establish threat dynamics, appraisal, regulation, social cognition, bargaining, and cooperation; they do not directly validate the Demure Fulcrum as one construct.

Second, conceptual breadth remains a risk. If strict, intrapersonal, and existential uses are allowed to drift together, *negotiation* can become a metaphor for almost any adaptive thought. The typology must therefore be enforced in empirical writing.

Third, the framework may overlap extensively with problem-focused coping, perceived control, social problem solving, assertiveness, and negotiation skill. Incremental validity is an empirical requirement, not an assumption.

Fourth, the language of agency can become moralising. People facing violence, coercive control, disability, poverty, discrimination, or institutional exclusion may have very limited alternatives. The framework must not convert structural deprivation into an individual failure to find leverage.

Fifth, the formal model simplifies lived situations. Utilities are not always stable, actors may misunderstand themselves, commitments may be unenforceable, and emotion can transform what is valued. Formal clarity is useful only if it remains corrigible by behavioural and qualitative evidence.

Sixth, the cultural examples are selective and largely drawn from Western literature and cinema. Cross-cultural research must examine local practices and concepts rather than merely adding decorative non-Western examples.

Seventh, negotiation can worsen outcomes. It may consume time during emergencies, disclose vulnerability, expose a person to retaliation, or produce a bad agreement when exit would be better. The theory predicts a response option, not a universal prescription.

Finally, the name is eponymous and may be mistaken for a claim of modest or passive behaviour. Future research should test the construct independently of the branded label.

16. Conclusion

The durable insight behind the Demure Fulcrum is not that humans possess a newly discovered reflex. It is that threats can be approached at more than one level. An actor may select among the options presented by a situation, or may attempt to change what the situation permits.

Strict negotiation under threat combines an influenceable counterpart, interdependence, communication, contingency, structural transformation, and residual agency. This definition makes the idea narrower than ordinary “talking things through” and more testable than a broad celebration of human consciousness. It also makes clear why negotiation may be impossible, unsafe, coercive, or reducible to existing constructs.

The framework now stands as a research invitation. Its next step is not a stronger declaration but disciplined measurement: reliable coding, manipulated boundary conditions, comparison with rival constructs, cross-cultural testing, and explicit acceptance of disconfirming results. The Demure Fulcrum earns scientific value only if it helps explain when and how people move from reacting within a threat to negotiating the structure of the threat itself.

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